

**SUBSTITUTE FOR
SENATE BILL NO. 934**

A bill to amend 1987 PA 96, entitled
"The mobile home commission act,"
by amending the title and sections 2, 3, 4, 5, 6, 7, 14, 16, and
30a (MCL 125.2302, 125.2303, 125.2304, 125.2305, 125.2306,
125.2307, 125.2314, 125.2316, and 125.2330a), section 2 as amended
by 2022 PA 33, sections 4 and 16 as amended by 2015 PA 40, sections
5 and 6 as amended by 2006 PA 328, section 7 as amended by 2009 PA
215, and section 30a as amended by 2012 PA 588, and by adding
sections 16b and 16c.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

TITLE

An act to create a ~~mobile home~~ **manufactured housing**
commission; to prescribe its powers and duties and those of local



1 governments; to provide for a mobile home code and the licensure,
2 regulation, construction, operation, and management of mobile home
3 parks, the licensure and regulation of ~~retail sales~~ **mobile home**
4 dealers, warranties of mobile homes, and service practices of
5 **mobile home** dealers; to provide for the titling of mobile homes; to
6 prescribe the powers and duties of certain agencies and
7 departments; to provide remedies and penalties; to declare the act
8 to be remedial; to repeal this act on a specific date; and to
9 repeal certain acts and parts of acts.

10 Sec. 2. As used in this act:

11 (a) "Campground" means a campground as defined in section
12 12501 of the public health code, 1978 PA 368, MCL 333.12501.

13 (b) "Code" means all or a part of the mobile home code
14 promulgated under section 5.

15 (c) "Commission" means the manufactured housing commission.

16 (d) **"Complete license application" means an application that**
17 **contains all licensing information required under section 16,**
18 **including any applicable licensing fees or any administrative fines**
19 **previously assessed against the applicant by the department or**
20 **commission that remain unpaid at the time of the license**
21 **application, if applicable, unless the administrative fines are**
22 **being appealed as provided under applicable laws. A license is not**
23 **incomplete solely because the license is missing information that**
24 **is required to be provided by a local unit of government or state**
25 **agency that was not provided because of a processing delay by that**
26 **local unit of government or state agency. An application is**
27 **considered complete if the applicant has submitted applicable**
28 **department forms to the local unit of government and the local unit**
29 **of government has not returned the forms within 6 weeks after the**



1 **applicant submits the forms to the local unit of government.**

2 **(e) ~~(d)~~**—"Department" means the department of licensing and
3 regulatory affairs, except as follows:

4 **(i)** Department means the department of state in all of the
5 following circumstances:

6 **(A)** As used in section 5(1) with respect to rules promulgated
7 under section ~~5(1)(h)~~. **5(1)(g)** .

8 **(B)** As used in section 9(5) with respect to rules adjusting
9 fees under section 30a or 30c.

10 **(C)** As used in sections 30 to 30i and 30k.

11 **(ii)** Department, as used with respect to **all** powers and duties
12 concerning water supply systems and sewage collection and disposal
13 systems for mobile home parks and seasonal mobile home parks, means
14 the department of environment, Great Lakes, and energy.

15 **(f) ~~(e)~~**—"Guideline" means that term as defined in section 3 of
16 the administrative procedures act of 1969, 1969 PA 306, MCL 24.203.

17 **(g)** "Immediate family member" means a spouse, parent, child,
18 sibling, stepparent, stepchild, stepsibling, father-in-law, mother-
19 in-law, son-in-law, daughter-in-law, brother-in-law, or sister-in-
20 law.

21 **(h)** "Infraction" means a violation of this act or an
22 administrative rule promulgated under this act that is not a
23 material deficiency, has been identified in a written notice by the
24 department and provided to a licensee, and has not been corrected
25 within the time frame indicated by the department in the notice.
26 The department may, in its discretion, extend the time frame for
27 correcting an infraction upon request of a licensee for good cause.

28 **(i) ~~(f)~~**—"Installer and repairer" means a person, including a
29 mobile home dealer, that for compensation installs or repairs



1 mobile homes.

2 (j) "Licensed real estate broker" means a real estate broker
3 licensed under article 25 of the occupational code, 1980 PA 299,
4 MCL 339.2501 to 339.2518.

5 (k) ~~(g)~~ "Local government" means a county or municipality.

6 (l) "Material deficiency" means a violation of this act or an
7 administrative rule promulgated under this act that threatens the
8 health, safety, or welfare of the residents of the mobile home park
9 or seasonal mobile home park or rules promulgated under section 6.

10 (m) ~~(h)~~ "Mobile home" means ~~a~~ any of the following:

11 (i) A structure that is built before June 5, 1976, and is
12 transportable in 1 or more sections, built on a chassis, and
13 designed to be used as a dwelling, with or without a permanent
14 foundation, when connected to the required utilities, and includes
15 the plumbing, heating, air-conditioning, and electrical systems
16 contained in the structure.

17 (ii) A structure that meets all of the following requirements:

18 (A) Is built on or after June 5, 1976.

19 (B) Complies with the safety standards promulgated by the
20 United States Department of Housing and Urban Development under the
21 national manufactured housing construction and safety standards act
22 of 1974, 42 USC 5401 to 5426.

23 (C) Displays the certification label required by the United
24 States Department of Housing and Urban Development on the exterior
25 of each transportable section.

26 (n) ~~(i)~~ "Mobile home dealer" means a person other than a
27 manufacturer engaged in the business of buying mobile homes for
28 resale, exchange, lease, or rent or offering mobile homes for sale,
29 lease, rent, or exchange to customers.



1 **(o) ~~(j)~~** "Mobile home park" means a parcel or tract of land
 2 under the control of a person ~~upon~~**on** which 3 or more mobile homes
 3 are located on a continual, nonrecreational basis and ~~which~~**that** is
 4 offered to the public for that purpose regardless of whether a
 5 charge is made for the parcel or tract of land, together with any
 6 building, structure, enclosure, street, equipment, or facility used
 7 or intended for use incident to the occupancy of a mobile home. **A**
 8 **mobile home park may include up to 4 spots for recreation vehicles**
 9 **and still meet the definition of mobile home park.**

10 **(p) ~~(k)~~** "Municipality" means a city, village, or township.

11 **(q) ~~(l)~~** "Person" means an individual, partnership, association,
 12 trust, or corporation, or any other legal entity or combination of
 13 legal entities.

14 **(r) "Person with a beneficial interest" means a person that**
 15 **has a direct or indirect ownership interest of more than 20% in an**
 16 **applicant's mobile home park or seasonal mobile home park. For**
 17 **purposes of this subdivision, a person with a beneficial interest**
 18 **is any of the following for each applicant:**

19 **(i) For an individual or sole proprietorship, the individual or**
 20 **sole proprietor.**

21 **(ii) For a partnership or limited liability partnership, all**
 22 **managing partners.**

23 **(iii) For a limited partnership or limited liability limited**
 24 **partnership, all general and limited partners, excluding a limited**
 25 **partner that holds a direct or indirect ownership interest of less**
 26 **than 20% in the limited partnership or limited liability limited**
 27 **partnership and does not participate in the applicant's day-to-day**
 28 **operations.**

29 **(iv) For a limited liability company, all members and managers,**

1 excluding a member that holds a direct or indirect ownership
 2 interest of 10% or less in the limited liability company and does
 3 not participate in the applicant's day-to-day operations.

4 (v) For a privately held corporation, the president and chief
 5 executive officer and all stockholders that hold a direct or
 6 indirect ownership interest of more than 20%.

7 (vi) For a publicly held corporation, the corporate officer who
 8 is designated with the regulatory responsibility for the
 9 corporation.

10 (vii) For a nonprofit corporation, the president and chief
 11 executive officer.

12 (viii) For a trust, the trustee and all beneficiaries that
 13 receive or have the right to receive more than 20% of the gross or
 14 net profit of the trust during any full or partial calendar year.

15 (s) ~~(m)~~ "Recreational vehicle" means ~~a vehicle primarily~~
 16 ~~designed and used as temporary living quarters for recreational,~~
 17 ~~camping, or travel purposes, including a vehicle having its own~~
 18 ~~motor power or a vehicle mounted on or drawn by another~~
 19 ~~vehicle.~~ **that term as defined in section 49a of the Michigan vehicle**
 20 **code, 1949 PA 300, MCL 257.49a. For purposes of this subdivision, a**
 21 **recreational vehicle does not include a mobile home.**

22 (t) ~~(n)~~ "Seasonal mobile home park" means a parcel or tract of
 23 land under the control of a person ~~upon~~ **on** which 3 or more mobile
 24 homes are located on a continual or temporary basis but occupied on
 25 a temporary basis only, and ~~which~~ **that** is offered to the public for
 26 that purpose regardless of whether a charge is made for the parcel
 27 or tract of land, together with any building, enclosure, street,
 28 equipment, or facility used or intended for use incident to the
 29 occupancy of a mobile home. Seasonal mobile home park does not



1 include a campground licensed under sections 12501 to 12516 of the
2 public health code, 1978 PA 368, MCL 333.12501 to 333.12516.

3 (u) ~~(e)~~ "Secured party" means that term as defined in section
4 9102 of the uniform commercial code, 1962 PA 174, MCL 440.9102.

5 (v) ~~(p)~~ "Security interest" means that term as defined in
6 section 1201 of the uniform commercial code, 1962 PA 174, MCL
7 440.1201.

8 (w) ~~(q)~~ "Termination statement" means that term as defined in
9 section 9102 of the uniform commercial code, 1962 PA 174, MCL
10 440.9102.

11 Sec. 3. (1) The ~~mobile home~~ **manufactured housing** commission is
12 created within the department. ~~of commerce.~~

13 (2) The commission consists of 11 members appointed by the
14 governor with the advice and consent of the senate, each of whom
15 ~~shall~~ **must** be a citizen of this state.

16 (3) The members of the commission shall include each of the
17 following:

18 (a) A representative of an organization whose membership
19 consists of mobile home residents.

20 ~~(b) A representative of financial institutions.~~

21 (b) ~~(c)~~ Two ~~operators~~ **owners** of a licensed mobile home park.
22 ~~having 100 or more sites and 1 operator of a licensed mobile home~~
23 ~~park having less than 100 sites.~~

24 (c) ~~(d)~~ A representative of organized labor, **a legal aid**
25 **group, or other housing advocate organization.**

26 (d) ~~(e)~~ An elected official of a local government.

27 (e) ~~(f)~~ A licensed mobile home dealer.

28 (f) ~~(g)~~ ~~One resident~~ **Two residents** of a licensed mobile home
29 ~~park. having 100 or more sites and 1 resident of a licensed mobile~~



1 ~~home park having less than 100 sites.~~

2 (g) ~~(h)~~ A manufacturer of mobile homes.

3 (h) An individual who is licensed by this state or the United
4 States Department of Housing and Urban Development to install
5 mobile homes.

6 (i) The director of the state housing development authority or
7 the designee of the director.

8 (4) A person appointed to ~~be a member~~ **the commission** under
9 subsection (3)(a), (d), (e), **or** (g), or a member of that person's
10 immediate family shall not have more than a 1% ownership interest
11 in or income benefit from a manufacturer of mobile homes, a retail
12 seller of mobile homes, a licensed mobile home park, or a supplier
13 of ancillary products or services to the mobile home industry.

14 (5) The term of **office for** each member ~~shall of the commission~~
15 **must** be for 3 years. A vacancy in the office of a member ~~shall must~~
16 be filled by the governor for the remainder of the unexpired term,
17 not more than 1 month after the vacancy is created, **and** in the same
18 manner as the original appointment.

19 (6) The **legislature shall establish annually** a per diem
20 compensation ~~of~~ **for** the **members of the** commission and ~~the a~~
21 schedule for reimbursement of expenses. ~~shall be established~~
22 ~~annually by the legislature.~~

23 (7) ~~Six~~ **A majority of the** members of the commission constitute
24 a quorum for all purposes, notwithstanding the existence of a
25 vacancy in the commission's membership. Action may be taken by the
26 commission by a vote of a majority of the members appointed and
27 serving. Meetings of the commission may be called by the
28 chairperson or by 3 members **of the commission** on 3 business days'
29 actual notice. At least 1 meeting ~~shall must~~ be held each calendar



1 quarter. The commission may hold meetings anywhere in this state.

2 (8) The commission shall elect a member of the commission as
3 its chairperson and another member as its vice-chairperson. The
4 duties and powers of the chairperson and vice-chairperson ~~shall~~
5 **must** be as prescribed in the commission's rules.

6 (9) A member of the commission may be removed from office by
7 the governor for inefficiency, neglect of duty, or misconduct or
8 malfeasance in office. A member of the commission who has a direct
9 pecuniary interest in a matter before the commission shall disclose
10 that interest before the commission ~~taking~~**takes** action with
11 respect to the matter. ~~, which~~**The** disclosure ~~shall~~**must** become a
12 part of the record of the commission's official proceedings.

13 Sec. 4. (1) The commission may do all of the following:

14 (a) After **seeking** consultation with and considering comments
15 from representatives of the manufactured housing industry, **local**
16 **governments, resident advocates**, and other interested parties,
17 recommend rules to the department to implement and administer this
18 act.

19 (b) Act for the purpose of establishing a uniform policy
20 relating to all phases of mobile home businesses, mobile home
21 parks, and seasonal mobile home parks.

22 (c) Determine the sufficiency of local mobile home ordinances
23 that are designed to provide local governments with superintending
24 control over mobile home businesses, mobile home parks, or seasonal
25 mobile homes parks.

26 (d) Conduct public hearings relating to the powers prescribed
27 in this subsection.

28 (2) ~~The director or an authorized representative of the~~
29 ~~director~~**department** shall do all of the following:



1 (a) Employ an appropriate number of employees with the
 2 appropriate qualifications as required to implement and enforce
 3 this act and the rules promulgated under this act, including, but
 4 not limited to, staff to conduct community inspections, review
 5 financial information, manage the licensing process, and
 6 investigate potential violations of this act and the rules
 7 promulgated under this act.

8 (b) ~~(a)~~ After consultation with and considering comments from
 9 representatives of the manufactured housing industry and other
 10 interested parties, promulgate rules to implement and administer
 11 this act.

12 (c) ~~(b)~~ Conduct hearings relating to violations of this act or
 13 rules promulgated under this act.

14 (d) ~~(c)~~ Make investigations to determine compliance with this
 15 act and rules promulgated under this act.

16 (e) ~~(d)~~ Provide assistance to the commission as the commission
 17 requires, **including ensuring that the commission meets in**
 18 **accordance with section 3 and members of the commission receive**
 19 **notice of scheduled meetings.**

20 (f) ~~(e)~~ ~~On not less than a quarterly basis,~~ **At every quarterly**
 21 **meeting of the commission,** report to the commission on the
 22 expenditure of all fees collected under this act and the relation
 23 of those expenditures to the enforcement and administration of this
 24 act.

25 (g) ~~(f)~~ Post and maintain on the department's website all
 26 current guidelines.

27 (h) ~~(g)~~ Promptly notify a local government of the issuance,
 28 amendment, or rescission of a guideline if the department has
 29 knowledge that a mobile home park or seasonal mobile home park is



1 located in, or an application has been filed for the licensure of a
2 park proposed to be located in, the local government. The notice
3 ~~shall~~**must** be sent by first-class mail or ~~electronic mail~~**email** to
4 each of the following:

5 (i) The clerk of the local government.

6 (ii) The chief executive officer of the local government.

7 (iii) The enforcing agency for the local government if, under
8 section 8a or 8b of the Stille-DeRossett-Hale single state
9 construction code act, 1972 PA 230, MCL 125.1508a and 125.1508b,
10 the local government has assumed responsibility for the
11 administration and enforcement within its jurisdiction of that act
12 and the state construction code or a part of the state construction
13 code of limited application.

14 **(i) ~~(h)~~** If the department receives a complaint about a
15 condition at a mobile home park or seasonal mobile home park that
16 imminently threatens the health or safety of the residents of the
17 park, promptly notify each local government in which the park is
18 located of the details of the complaint.

19 (3) The commission shall not regulate mobile homes that are
20 not located within a mobile home park or a seasonal mobile home
21 park, except as relates to the business, sales, and service
22 practices of mobile home dealers and the business practices of
23 mobile home installers and repairers.

24 **(4) Within 12 months after the effective date of the**
25 **amendatory act that added this subsection, the department shall**
26 **establish or cause to be established a database of mobile home park**
27 **or seasonal mobile home park owners that includes every licensed**
28 **mobile home park or seasonal mobile home park owner's contact**
29 **information, license number, and current licensing status. The**



1 department shall make the database available to the public on the
2 department's website. The database must include each mobile home
3 park or seasonal mobile home park owner that has a license to
4 operate a mobile home park or seasonal mobile home park. The
5 department shall establish a method in which the public may submit
6 a reporting form on its website regarding potentially unlicensed
7 mobile home park or seasonal mobile home park owners and the
8 department shall update the public database within 30 days of a
9 change in licensure status. To the extent it complies with the
10 requirements of this subsection, subsection (5), and subsection
11 (6), the department may utilize an existing database.

12 (5) The database described in subsection (4) must provide a
13 means by which a mobile home park or seasonal mobile home park
14 owner may update the mobile home park or seasonal mobile home park
15 owner's contact information. Every mobile home park or seasonal
16 mobile home park owner must designate an individual who is an
17 owner, officer, director, or employee of the mobile home park or
18 seasonal mobile home park owner as the mobile home park or seasonal
19 mobile home park owner's designee to communicate with the
20 department and must provide that individual's contact information
21 to the department, including the individual's current street
22 address, monitored email address, and operational telephone number.

23 (6) The database described in subsection (4) must include
24 information on findings of material deficiencies or infractions in
25 a mobile home park or seasonal mobile home park, and the manner in
26 which the database can indicate that the material deficiencies or
27 infractions have been addressed or corrected.

28 Sec. 5. (1) ~~After~~ Within 3 months after the effective date of
29 the amendatory act that added section 16b, after seeking

1 consultation with and considering comments from representatives of
 2 the manufactured housing industry, **resident advocates, the**
 3 **commission, local governments,** and other interested parties, the
 4 department shall ~~promulgate~~ **initiate the process to revise** the
 5 mobile home code subject to section 4. The **revisions to the** code
 6 ~~shall~~ **must** consist of rules governing all of the following:

7 (a) The ~~licensure,~~ density, layout, permits for construction,
 8 construction of mobile home parks including standards for **fire**
 9 **hydrant placement,** roads, **road signs,** utilities, open ~~space,~~
 10 **spaces,** or proposed **community buildings and** recreational
 11 facilities, **drainage,** and safety measures sufficient to protect **the**
 12 health, safety, and welfare of mobile home park residents, except
 13 water supply ~~, and~~ sewage collection and treatment ~~, and drainage~~
 14 ~~facilities which~~ **that** are regulated by the department of
 15 ~~environmental quality.~~ **environment, Great Lakes, and energy.**

16 (b) The business, sales, and service practices of mobile home
 17 dealers, **including requiring advertisements to contain contact**
 18 **information, as well as placing parameters on dealer sales**
 19 **financing practices and terms, claims, and conditions to the sale**
 20 **of a mobile home.**

21 (c) The business practices of mobile home installers and
 22 repairers, **including training and licensing requirements for**
 23 **individuals who install and repair mobile homes in mobile home**
 24 **parks or seasonal mobile home parks.**

25 ~~(d) The licensure and regulations of mobile home installers~~
 26 ~~and repairers.~~

27 **(d)** ~~(e)~~ The setup and installation of mobile homes inside
 28 mobile home parks or seasonal mobile home parks.

29 **(e)** ~~(f)~~ The regulation of the responsibilities, under the



mobile home warranty, of the mobile home components manufacturer, the mobile home assembler or manufacturer, and the mobile home dealer, including the time period and relationships of each under the warranty, and the remedies available, if any, if the responsible parties cease to operate as a business.

(f) ~~(g)~~—Abuses relating to all of the following:

(i) Consumer deposits, except utility deposits from consumers who are direct customers of utilities regulated by the Michigan public service commission.

(ii) Detailed listing of furnishings and fixtures by a manufacturer of a new mobile home or a mobile home dealer for a used mobile home.

(iii) Disclosure and delivery of manufacturer's warranties.

(iv) Used mobile homes. A mobile home dealer shall provide **a** detailed listing of its service records for used mobile homes ~~which~~ **that** are being sold by the dealer and of which the dealer has knowledge.

(g) ~~(h)~~—Applications for and issuance of certificates of title for mobile homes.

(h) Inspections, including audit inspections of mobile home parks and seasonal mobile home parks, and the timeline for correction of the inspection findings.

(i) Mobile home dealers and mobile home dealers' agents practices as well as prohibited practices, including violations of this act and the rules promulgated under this act, acting on an unlicensed person's behalf, allowing a license to be used by an unlicensed person, disclosure of mobile home dealers' interest to third parties, and disclosure of mobile home dealers' interest in transactions.



1 (j) Standards for the closure of a mobile home park or
2 seasonal mobile home park.

3 (2) As part of the code, the department shall also promulgate
4 rules governing the ~~licensure~~, density, layout, permits for
5 construction, and construction of seasonal mobile home parks,
6 including **minimum** standards for **fire hydrant placement**, roads, **road**
7 **signs**, utilities, open ~~space~~, **spaces**, **drainage**, **garbage and rubbish**
8 **storage and disposal**, **insect and rodent control**, **general operation**,
9 **maintenance**, **safety certification of compliance under section 17**,
10 proposed **community buildings and** recreational facilities, and
11 safety measures sufficient to protect the health, safety, and
12 welfare of seasonal mobile home park residents, except water
13 supply, sewage collection and treatment, and drainage facilities ~~-~~
14 ~~which shall be that are~~ regulated by the department of
15 ~~environmental quality.~~**environment, Great Lakes, and energy.**

16 (3) The rules promulgated for seasonal mobile home parks may
17 impose a less stringent standard than the rules promulgated for
18 mobile home parks.

19 (4) All administrative rules promulgated by the department or
20 the commission under this act and not rescinded on the effective
21 date of the amendatory act that added this subsection are
22 authorized, valid, and enforceable and must remain in effect until
23 the date on which the department promulgates administrative rules
24 pursuant to the amendatory act that added this subsection.

25 Sec. 6. (1) The department of environment, Great Lakes, and
26 energy has the authority to promulgate rules regarding water supply
27 systems, sewage collection, and disposal systems for mobile home
28 parks and seasonal mobile home parks to ensure that the health and
29 safety of residents of mobile home parks and seasonal mobile home



1 **parks are protected. The department of environment, Great Lakes,**
 2 **and energy may enter into an agreement with a local unit of**
 3 **government to enforce the rules promulgated under this act.**

4 **(2)** ~~(1)~~ After consultation with and considering comments from
 5 representatives of the manufactured housing industry and other
 6 interested parties, the department of ~~environmental quality~~
 7 **environment, Great Lakes, and energy** shall promulgate rules for
 8 mobile home parks and seasonal mobile home parks setting forth
 9 minimum standards regulating **both of the following:**

10 (a) Water supply system.

11 (b) Sewage collection and disposal system.

12 ~~(c) Drainage.~~

13 ~~(d) Garbage and rubbish storage and disposal.~~

14 ~~(e) Insect and rodent control.~~

15 ~~(f) General operation, maintenance, and safety.~~

16 ~~(g) Certification of compliance under section 17.~~

17 **(3)** ~~(2)~~ Representatives of local government shall act in an
 18 advisory capacity in the promulgation of the code.

19 **(4)** ~~(3)~~ The commission shall consult with appropriate state
 20 and local governments in developing the procedures for effective
 21 coordination of efforts. The commission shall recommend procedures
 22 to the governor and the legislature for coordinating state agency
 23 decisions and activities pertaining to this act.

24 Sec. 7. (1) Except as provided in subsection (7), a local
 25 government that proposes a standard related to mobile home parks or
 26 seasonal mobile home parks, or related to mobile homes located
 27 within a mobile home park or a seasonal mobile home park, that is
 28 higher than the standard provided in this act or the code, or that
 29 proposes a standard related to the business, sales, and service



1 practices of mobile home dealers, or the business of mobile home
2 installers and repairers, that is higher than the standard provided
3 in this act or the code, shall file the proposed standard with the
4 commission. Except as provided in subsection (7), the commission
5 may promulgate rules to establish the criteria and procedure for
6 implementation of higher standards by a local government. The
7 commission shall review and approve the proposed standard unless
8 the standard is unreasonable, arbitrary, or not in the public
9 interest. If the commission does not approve or disapprove the
10 proposed standard within 60 days after it is filed with the
11 commission, the standard ~~shall be~~ **is** considered approved unless the
12 local government grants the commission additional time to consider
13 the standard. After the proposed standard is approved, the local
14 government may adopt the standard by ordinance. The ordinance ~~shall~~
15 **must** relate to a specific section of the code.

16 (2) A local government standard related to mobile homes not
17 located within a mobile home park or seasonal mobile home park need
18 not be filed with the ~~mobile home~~ **manufactured housing** commission,
19 unless the standard relates to the business, sales, and service
20 practices of mobile home dealers, or the business of mobile home
21 installers and repairers.

22 (3) A local government ordinance ~~shall~~ **must** not be designed as
23 exclusionary to mobile homes generally whether the mobile homes are
24 located inside or outside of mobile home parks or seasonal mobile
25 home parks.

26 (4) A local government ordinance ~~shall~~ **must** not contain a
27 standard for the setup or installation of mobile homes that is
28 incompatible with, or is more stringent than, either of the
29 following:



(a) The manufacturer's recommended setup and installation specifications.

(b) The mobile home setup and installation standards promulgated by the ~~federal department of housing and urban development pursuant to~~ **United States Department of Housing and Urban Development under** the national manufactured housing construction and safety standards act of 1974, 42 USC 5401 to 5426.

(5) In the absence of any setup or installation specifications or standards for foundations as set forth in subsection (4) (a) or (b), the local government standards for site-built housing ~~shall~~ apply.

(6) A local government ordinance ~~shall~~ **must** not contain roof configuration standards or special use zoning requirements that apply only to, or excludes, mobile homes. A local government ordinance ~~shall~~ **must** not contain a manufacturing or construction standard that is incompatible with, or is more stringent than, a standard promulgated by the ~~federal department of housing and urban development pursuant to~~ **United States Department of Housing and Urban Development under** the national manufactured housing construction and safety standards act of 1974, 42 USC 5401 to 5426. A local government ordinance may include reasonable standards relating to mobile homes located outside of mobile home parks or seasonal mobile home parks ~~which~~ **that** ensure that mobile homes compare aesthetically to site-built housing located or allowed in the same residential zone.

(7) Notwithstanding ~~anything in any provision in~~ section 17 ~~that may be~~ to the contrary, a local government may adopt an ordinance to inspect mobile homes for safety within a mobile home park, a seasonal mobile home park, or mobile homes located outside



1 a mobile home park or a seasonal mobile home park if the mobile
 2 home being inspected is being rented to a tenant by ~~the owner of~~
 3 the mobile home **owner**. The local government may propose a means to
 4 determine which mobile homes located within its jurisdiction are
 5 being rented to tenants by the owner, including, but not limited
 6 to, imposition of a registration or a licensing requirement for
 7 renting mobile homes to tenants. A local government may inspect
 8 mobile homes rented to tenants by the owner for safety if the
 9 safety inspection ordinance applies to all other rental housing
 10 within the local governmental unit. If a local government inspects
 11 mobile homes rented to tenants by the owner for safety, the period
 12 between inspections ~~shall~~**must** not be less than 3 years unless the
 13 local government is responding to a complaint from a tenant. An
 14 inspection ~~shall~~**must** not be conducted on a mobile home for which
 15 an occupancy permit has been issued by the local government in the
 16 preceding 3 years unless the local government is responding to a
 17 complaint from a tenant. Inspections for safety ~~shall~~**must** not
 18 require enforcement of any mobile home construction standards that
 19 are greater than those applicable to the mobile home under the
 20 national manufactured housing construction and safety standards act
 21 of 1974, 42 USC 5401 to 5426, or standards or codes ~~to which~~**that**
 22 the mobile home was constructed if it was constructed before
 23 application of the national manufactured housing construction and
 24 safety standards act of 1974, 42 USC 5401 to 5426. As used in this
 25 section, "inspection for safety" means an inspection of a rental
 26 mobile home that is limited to ensuring the proper functioning, or
 27 protection, of the following:

28 (a) Furnace.

29 (b) Water heater.



- 1 (c) Electrical wiring.
- 2 (d) Proper sanitation and plumbing.
- 3 (e) Ventilation.
- 4 (f) Heating equipment.
- 5 (g) Structural integrity.
- 6 (h) Smoke alarms.

7 Sec. 14. Upon completion of the construction of the mobile
 8 home park or seasonal mobile home park, the owner ~~or operator of~~
 9 the **mobile home park or seasonal mobile home park** and a registered
 10 professional engineer or architect shall file with the department
 11 an affidavit certifying that the mobile home park or seasonal
 12 mobile home park, lot, and work were completed in accordance with
 13 the approved specifications and plans.

14 Sec. 16. **(1) Within 3 months after the effective date of the**
 15 **amendatory act that added section 16b, after seeking consultation**
 16 **with representatives of the manufactured housing industry, resident**
 17 **advocates, the commission, local governments, and other interested**
 18 **parties, the department shall initiate the process to revise and**
 19 **promulgate rules governing the licensure of owners of mobile home**
 20 **parks and seasonal mobile home parks, including determining**
 21 **standards to meet the licensing requirements of this section.**

22 **(2)** ~~(1)~~ A person shall not ~~operate-own~~ a mobile home park or
 23 seasonal mobile home park without a license. ~~The term of a license~~
 24 ~~is 3 years. The~~ **For purposes of this act, a person must obtain a**
 25 **license for each mobile home park or seasonal mobile home park. The**
 26 **term of a license is 3 years. Subject to subsection (5), the**
 27 **department shall within 60 calendar days after receiving a**
 28 **completed license application** issue a license ~~only~~ if all of the
 29 following requirements are met:



1 (a) The applicant submits a complete license application that
2 meets all of the following requirements: -

3 (i) Affirms the financial ability of the applicant to own and
4 operate the mobile home park or seasonal mobile home park.

5 (ii) Affirms the applicant's ability to comply with the
6 applicable laws, rules, and regulations of this state.

7 (iii) Affirms that the applicant and any person with a
8 beneficial interest have not had a license to own a mobile home
9 park or seasonal mobile home park, or a permit or other
10 governmental permission to operate a mobile home park or seasonal
11 mobile home park suspended, canceled, or revoked by this state or
12 another governmental agency within the past 3 years, or
13 demonstrates that a suspended, canceled, or revoked license,
14 permit, or other governmental permission has since been reinstated
15 or reissued.

16 (iv) Affirms that the applicant and any person with a
17 beneficial interest have not been convicted of a felony involving
18 fraud, deceit, or nonfeasance within the past 5 years or a
19 misdemeanor involving fraud, deceit, or nonfeasance in real estate,
20 property management, or a connected industry within the previous 3
21 years.

22 (v) Affirms that before submitting the application, each
23 mobile home park or seasonal mobile home park located in this state
24 owned by the applicant, and any person with a beneficial interest
25 was in substantial compliance with the standards established by the
26 department during the most recent inspection conducted by the
27 department pursuant to section 17 and that all material
28 deficiencies identified by the department or its authorized
29 representative during that inspection had been corrected or that



1 the mobile home park or seasonal mobile home park is actively
2 working to correct all material deficiencies within the time frame
3 allowed by the department.

4 (vi) Includes the name, working telephone number, mailing
5 address, and monitored email address of an individual who is
6 responsible for receiving and responding to communications for the
7 mobile home park or seasonal mobile home park.

8 (vii) If a mobile home park or seasonal mobile home park is
9 owned by a foreign corporation, provides the department with
10 appropriate documentation to show it is authorized to do business
11 in this state, and has filed with the commission a consent to
12 service of process in a form prescribed by the commission under
13 section 35.

14 (viii) Provides proof of ownership of or an option to purchase
15 the mobile home park or seasonal mobile home park.

16 (ix) Lists the name of any person with a beneficial interest.

17 (x) Lists the names and contact information of all secured
18 parties that hold a mortgage or other lien on the mobile home park
19 or seasonal mobile home park. If there is no mortgage or lien on
20 the mobile home park or seasonal mobile home park, indicates that
21 there is no mortgage or lien on the mobile home park or seasonal
22 mobile home park.

23 (xi) Affirms that the applicable department forms have been
24 submitted to the applicable local units of government and state
25 department and provides the date of submission of the forms.

26 (b) Certifications and recommendations of appropriate agencies
27 and local governments required to operate a mobile home park or
28 seasonal mobile home park are submitted to and approved by the
29 department. Nothing in this subdivision prohibits the assignment of



1 a certificate or recommendation from an agency or local government
 2 to the owner of a mobile home park or seasonal mobile home park for
 3 the purposes of complying with this subdivision.

4 (c) The applicant pays the ~~fee~~**fees** set forth in subsection
 5 ~~(4)-(8)~~ and any administrative fines previously assessed against
 6 the applicant or any person with a beneficial interest by the
 7 department or commission that remain unpaid at the time of the
 8 license application, if applicable, unless the administrative fines
 9 are being appealed as provided under applicable laws.

10 (d) The mobile home park or seasonal mobile home park was
 11 approved as being in substantial compliance after its most recent
 12 inspection under section 17 **and that all material deficiencies**
 13 **identified by the department or its authorized representative**
 14 **during that inspection had been corrected or are being corrected**
 15 **within the timeline allowed by the department.**

16 **(3)** ~~(2)~~—The commission shall promulgate rules to do all of the
 17 following:

18 (a) Provide standards and procedures for the commission to
 19 determine whether a mobile home park or seasonal mobile home park
 20 that is not in substantial compliance with the rules promulgated
 21 under sections 5 and 6 is a distressed park. The standards and
 22 procedures shall provide the owner with an opportunity for an
 23 evidentiary hearing and require the commission to consider at least
 24 all of the following:

25 (i) The length of time the mobile home park or seasonal mobile
 26 home park has not been in substantial compliance with the rules
 27 promulgated under sections 5 and 6.

28 (ii) Whether the owner ~~or operator~~ was notified and had
 29 sufficient opportunity to bring the mobile home park or seasonal



mobile home park into substantial compliance.

(iii) Any imminent threat to the health or safety of the residents of the mobile home park or seasonal mobile home park.

(iv) Whether the mobile home park or seasonal mobile home park has been or is likely to be abandoned by the owner. ~~or operator.~~

(b) Require the owner of a distressed mobile home park or seasonal mobile home park to post financial assurance in the form of a bond, cash deposit, or other financial arrangement to ensure the repair and cleanup of the mobile home park or seasonal mobile home park, including the repair of substandard or noncomplying park-owned utility systems and the removal and disposal of abandoned mobile homes, scrap material, or other waste.

(4) ~~(3)~~ Not more than 180 days after the effective date of the amendatory act that added this subsection, the commission shall submit a report on progress on rule promulgation under subsection ~~(2)~~ **(3)** to the standing committees of the senate and house of representatives with primary responsibility for legislation affecting mobile home parks.

(5) The department shall require a signed affidavit from the applicant that attests to the veracity of the information in subsection (2) (a) (i) to (xi) and may require the applicant to submit additional documentation to support the information provided under subsection (2) (a) (i) to (xi). The department shall deny the application if the department determines that the applicant does not meet the requirements attested to under subsection (2) (a) (i) to (xi) .

(6) To determine whether an applicant and any person with a beneficial interest is eligible for a license under this section, the department may conduct a background check on the applicant and



1 a person with a beneficial interest using the internet criminal
 2 history access tool (ICHAT) maintained by the department of state
 3 police. As used in this subsection, "background check" means a
 4 criminal history check that examines federal and state government
 5 records in a manner that allows for the successful identification
 6 of a criminal conviction that involves fraud, deceit, or
 7 nonfeasance.

8 (7) A licensed owner of a mobile home park or seasonal mobile
 9 home park shall post a copy of a license issued under this section
 10 in a conspicuous place in an area that is accessible to the
 11 residents of the mobile home park or seasonal mobile home park. If
 12 the department determines that an owner of a mobile home park or
 13 seasonal mobile home park violated this subsection, the department
 14 may impose an administrative fine of not more than \$5,000.00, after
 15 notice and a hearing as provided under the administrative
 16 procedures act of 1969, 1969 PA 306, MCL 24.201 to MCL 24.328.

17 (8) ~~(4) The fee-fees for a license to operate issued under~~
 18 **subsection (2) are as follows:**

19 (a) To own a mobile home park is \$225.00, plus an additional
 20 \$3.00 for each home site in excess of 25 home sites in the mobile
 21 home park. ~~, or any lesser amount established pursuant to section~~
 22 ~~9(5). The fee for a license to operate~~

23 (b) To own a seasonal mobile home park is \$120.00, plus an
 24 additional \$1.50 for each home site in excess of 25 home sites in
 25 the seasonal mobile home park. ~~, or any lesser amount established~~
 26 ~~pursuant to section 9(5).~~

27 (9) ~~(5) If a person submits a timely application for renewal~~
 28 ~~of a license~~ **issued under subsection (2)** and pays the appropriate
 29 ~~fee,~~ **fees and any administrative fines previously assessed against**



1 the person by the department or commission that remain unpaid at
2 the time of the application for renewal of the license, if
3 applicable, the person may continue to ~~operate~~ own a mobile home
4 park or seasonal mobile home park unless notified that the
5 application for renewal is not approved. An application for renewal
6 of a license must meet the requirements of a license application
7 under subsection (2). The department may assess a late renewal fee
8 of up to 50% of the license application fee if an application for
9 renewal of a license is submitted more than 7 days after the
10 expiration of the license.

11 (10) If the department determines that a license application
12 submitted under subsection (2) is incomplete, the department shall
13 send a written notice to the applicant and any relevant state or
14 local government entity that identifies the missing information in
15 the license application. The applicant must provide the missing
16 information identified in the written notice to the department
17 within 6 months after the receipt of the written notice from the
18 department. If an applicant fails to provide the missing
19 information as provided under this subsection, the license
20 application is void and the applicant shall submit a new license
21 application.

22 (11) A person licensed or required to be licensed to own a
23 mobile home park or seasonal mobile home park under this act is
24 responsible for meeting all the requirements for licensure and
25 complying with this act or rules promulgated under this act.

26 (12) A mobile home park or seasonal mobile home park owner
27 must notify the department within 30 days if the mobile home park
28 or seasonal mobile home park owner sells a mobile home park or
29 seasonal mobile home park and if the mobile home park or seasonal



mobile home park owner's designee changes or dies. If a mobile home park or seasonal mobile home park owner fails to update the information required in this subsection, the department shall, on the mobile home park or seasonal mobile home park owner's subsequent application to renew the mobile home park or seasonal mobile home park owner's license, assess an additional processing fee of \$100.00 to update the information required in this subsection in order to process the license application. If a mobile home park or seasonal mobile home park owner fails to update the information required in this subsection more than once and after the department assesses the additional \$100.00 processing fee required under this subsection, the department shall consider the subsequent failure to update the information required under this subsection as a condition for licensure under section 16.

(13) ~~(6)~~—A campground that is currently licensed under sections 12501 to 12516 of the public health code, 1978 PA 368, MCL 333.12501 to 333.12516, and was previously licensed under the former licensing provisions of 1959 PA 243, MCL 125.1035 to 125.1043, as a seasonal trailer park may apply for and ~~shall~~ **must** be granted a license as a seasonal mobile home park under this act if the campground meets all other requirements for licensure under this act as a seasonal mobile home park.

Sec. 16b. (1) An owner of a mobile home park or seasonal mobile home park shall notify the department of any of the following within 30 days after its occurrence:

(a) A change of ownership.

(b) A change of the mailing or electronic business address of the licensed owner of the mobile home park or seasonal mobile home park.



(c) The addition or removal of a mortgage, lien, secured party, or lienholder.

(2) An owner of a mobile home park or seasonal mobile home park that sells a mobile home park or seasonal mobile home park shall, within 30 days after the sale, provide the department with a copy of the sales contract or any recorded deed and notify the department of all of the following:

(a) The identity of the buyer of the mobile home park or seasonal mobile home park, including the contact information of the buyer.

(b) The date of the sale.

(c) Any change in the seller's contact information.

Sec. 16c. The mobile home license enforcement fund is created as a subfund of the mobile home code fund. Beginning October 1, 2026, the money from the fees and fines collected under section 43 must be deposited into the mobile home license enforcement fund. Upon appropriation, the department must use the mobile home license enforcement fund only for purposes provided under this act, including, but not limited to, inspecting and licensing mobile home parks and seasonal mobile home parks, enforcing this act's requirements regarding unlicensed activity and other violations of this act, and reimbursing the attorney general for expenses incurred in prosecuting violations of this act. Money in the fund at the end of the fiscal year must remain in the fund and does not lapse to the general fund.

Sec. 30a. (1) An owner of a mobile home ~~which~~**that** is subject to the certificate of title provisions of this act shall apply to the department for the issuance of a certificate of title for the mobile home ~~upon~~**on** the appropriate form furnished by the



1 department, **and until December 31, 2026**, accompanied by a fee of
 2 \$90.00 or any lesser amount established ~~pursuant to~~ **under** section
 3 9(5). The application ~~shall~~ **must** bear the signature of the owner
 4 written in ink, ~~shall~~ be acknowledged by the owner before a person
 5 authorized to take acknowledgments, and ~~shall~~ contain **all of the**
 6 **following information:**

7 (a) The name and address of the owner.

8 (b) A description of the mobile home, including the name of
 9 the manufacturer, the year and model, and the manufacturer's serial
 10 number or, in the absence of a serial number, a number assigned by
 11 the department. A number assigned by the department ~~shall~~ **must** be
 12 permanently placed on the mobile home in the manner and place
 13 designated by the department.

14 (c) A statement of the names and addresses of the holders of
 15 any security interests in the mobile home, in the order of their
 16 priority.

17 (d) Further information as may reasonably be required by the
 18 department to enable ~~it~~ **the department** to determine whether the
 19 applicant is entitled to a certificate of title for the mobile
 20 home.

21 (2) If the department is not satisfied as to the ownership of
 22 the mobile home, before issuing a certificate of title for it, the
 23 department may require the applicant to file a properly executed
 24 surety bond in a form prescribed by the department, executed by the
 25 applicant and a company authorized to conduct a surety business in
 26 this state. The bond ~~shall~~ **must** be in an amount equal to twice the
 27 value of the mobile home as determined by the department and shall
 28 be conditioned to indemnify or reimburse the department, any prior
 29 owner, any holder of a security interest in the mobile home, and



1 any subsequent purchaser of the mobile home, and their successors
 2 in interest, against any expense, loss, or damage, including
 3 reasonable attorney's fees, ~~by reason~~ **because** of the issuance of a
 4 certificate of title to the mobile home or on account of any defect
 5 in the right, title, or interest of the applicant in and to the
 6 mobile home. Each interested person has a right of action to
 7 recover on the bond for a breach of its conditions, but the
 8 aggregate liability of the surety to all persons ~~shall~~ **must** not
 9 exceed the amount of the bond. The bond ~~shall~~ **must** be returned at
 10 the end of 5 years, or before 5 years if the currently valid
 11 certificate of title is surrendered to the department, unless the
 12 department has received notification of the pendency of an action
 13 to recover on the bond.

14 (3) The department shall examine and determine the
 15 genuineness, regularity, and legality of an application for a
 16 certificate of title for a mobile home and of any other application
 17 lawfully made to the department, and may in all cases ~~make~~
 18 ~~investigation~~ **investigate** or require additional information as may
 19 be considered necessary, and shall reject any application if not
 20 satisfied of its genuineness, regularity, or legality or of the
 21 truth of any statement contained in it, or for any other reason
 22 authorized by law.

23 (4) The fee for obtaining a duplicate, replacement, or
 24 corrected title, for placing or terminating a lien on the title, or
 25 for placing a name on the title is \$15.00 unless a lesser amount is
 26 established ~~pursuant to~~ **under** section 9(5).

27 (5) An application for a duplicate title ~~shall~~ **must** be on a
 28 form prescribed by the department. The application ~~shall~~ **must**
 29 include a certification that the applicant owns the mobile home and

1 that all information on the application is complete to the best of
2 the applicant's knowledge. The applicant shall sign the application
3 or, if the application is filed electronically, provide information
4 requested by the department to verify the applicant's identity.

5 **(6) The fee for the issuance of a certificate of title is as**
6 **follows:**

7 **(a) Beginning January 1, 2027, through December 31, 2028,**
8 **\$150.00.**

9 **(b) Beginning January 1, 2029, through December 31, 2035,**
10 **\$175.00.**

11 **(c) Beginning January 1, 2036, \$195.00.**

12 Enacting section 1. This amendatory act does not take effect
13 unless all of the following bills of the 103rd Legislature are
14 enacted into law:

15 (a) Senate Bill No. 935.

16 (b) Senate Bill No. 937.